



Appeal Decision

Site visit made on 14 August 2026

by MG Garrard LLB (Hons), PGDip.LP, Solicitor

an Inspector appointed by the Secretary of State

Decision date: 17 September 2026

Appeal Ref: 6008404

Pinfield House, Brown Heath Lane, Martin Hussingtree, Worcestershire WR9 7JF

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs Kernaghan against the decision of Wychavon District Council.
 - The application Ref is W/25/00931/FUL.
 - The development proposed is demolition of existing dwelling and replacement of 1 no. new dwelling and associated external works.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Since the application was determined, the Council adopted the South Worcestershire Development Plan Review 2021-2041 (2026) (SWDPR), which superseded the policies against which the Council had determined the appeal proposal. The main parties addressed this in their appeal statements. I have taken the updated policies into account in making my decision.
3. Upon adoption of the SWDPR, the Council was able to demonstrate a five-year supply of deliverable housing with the required buffer. During the appeal, the Council has provided further evidence about its housing land supply, which the appellant had opportunity to comment on during the appeal.
4. During the course of the appeal, a revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were given an opportunity to comment on the implications of the revised Framework for the appeal, and I have taken those comments into account in reaching my decision. References to the Framework in my decision are to the August 2026 version.
5. The appellant submitted a draft unilateral undertaking during the appeal. Following revisions and comments from the parties, an executed version was provided. I consider its effect in relation to biodiversity net gain (BNG) below.

Main Issues

6. The main issues are:
 - whether the proposal is inappropriate development in the Green Belt for the purposes of the development plan and the Framework, including the effect on openness;

- whether the replacement dwelling would be disproportionately larger than the existing dwelling;
- the effect of the proposal on protected species; and
- whether the proposal would satisfy the requirements of the statutory framework for BNG.

Reasons

Inappropriate development and openness

7. The appeal site lies in the Green Belt and comprises Pinfield House, associated outbuildings and garden land. The proposal would replace the existing dwelling and some of the outbuildings with a larger dwelling on a revised footprint.
8. The fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. Development in the Green Belt is inappropriate and by definition harmful unless it falls within a category in Policy GB7 of the Framework that is not to be regarded as inappropriate.
9. The categories in Policy GB7 relevant to the proposal are GB7:1.b, which includes the replacement of an existing building where it is in the same use and not materially larger than the one it replaces, and GB7:1.e, which refers to the redevelopment of previously developed land where this would not cause substantial harm to the openness of the Green Belt.
10. Turning first to GB7:1.b, the proposed replacement dwelling would be more than double the width of the existing dwelling whether measured at ground or first floor. It would also be higher and slightly deeper. The gross internal area would approximately double and, as a significant part would be single storey, the footprint would almost triple.
11. The appellant argues that, when considered alongside the recently approved certificate of lawfulness for an ancillary building¹, the replacement dwelling would not be materially larger. However, GB7:1.b refers to the replacement of an existing building, and the proposed ancillary building has not been constructed. Whilst it may be relevant as a potential fallback position, a matter to which I return later in my decision, it does not form part of the existing development against which the proposal is to be assessed for the purposes of this exception. Even taking account of the removal of existing outbuildings apart from the double garage and carport, the replacement building would be materially larger. Therefore, GB7:1.b does not apply and the proposal would, in terms of this criterion, form inappropriate development.
12. The appellant contends that the site forms previously developed land and therefore Framework Policy GB7:1.e applies. This identifies the redevelopment of previously developed land that would not cause substantial harm to openness as not inappropriate development. The appeal site has been lawfully developed and is occupied by permanent structures. It therefore falls within the definition of previously developed land in Annex B to the Framework. By demolishing the existing dwelling and some associated outbuildings and building a replacement dwelling, the proposal would amount to redevelopment of the appeal site.

¹ W/26/00474/CLPU

Accordingly, the proposal would fall to be considered under Policy GB7.1e, subject to consideration of openness which I address below.

13. The Planning Practice Guidance² explains that assessing impacts on openness requires a judgement based on the circumstances of the case considering factors including spatial and visual aspects, the duration of the development, and the degree of activity likely to be generated such as traffic.
14. As discussed above, the proposed dwelling would be materially larger than the buildings it would replace and, in any event, would be a substantial structure. Even taking account of the recently granted certificate of proposed lawfulness for an outbuilding to provide a home office, gym, sauna and wet room, the increased mass and bulk of the replacement dwelling would reduce openness spatially.
15. Turning to the visual aspects of openness, the proposal would sit at the end of the driveway off Brown Heath Lane within extensive garden land with mature trees and vegetation which would filter views from the road. It would be well screened from the nearby public right of way by established hedging. Its size and contemporary design would give it a strong visual presence, but the existing planting and being set further back from the road than the current dwelling, would limit its visual effect.
16. From the rear, the visual prominence of the existing dwelling is reduced by the mono-pitched roof and limited first floor glazing. The proposal would have a taller eaves height and include large full-height areas of glazing, which would give it a prominent appearance to the rear. As I noted from my site visit, views of the rear of appeal site are possible looking back from the public right of way, but they are reduced as a result of the topography of the land at that point.
17. The proposal would continue the existing use of the site as a single dwellinghouse. Whilst the replacement dwelling would be larger, there is little to indicate that it would result in a material increase in parked vehicles, domestic paraphernalia or similar features that could affect openness. Accordingly, it would not materially increase the spatial or visual effects arising from the appeal site's residential use.
18. Noting the increase in the size, footprint and volume of the replacement dwelling, the effect on openness is not determined solely by a quantitative comparison of built form. The appeal site is already occupied by a detached dwelling and associated buildings within substantial grounds. The proposal's increased scale would reduce openness, but it would be contained within the existing residential curtilage, and would remove the majority of the outbuildings, consolidating the built form into a more coherent arrangement centred on the replacement dwelling.
19. Bringing all the above together, taking account of the existing character of the site, the contained nature of the proposal, the limited spatial and visual effects identified above, and the absence of any material increase in activity, the harm to openness which would occur would fall well short of substantial harm. The proposal therefore falls within Policy GB7:1.e and is not inappropriate development in the Green Belt for the purposes of the development plan and the Framework, including the effect on openness.

² Paragraph: 013 Reference ID: 64-013-20250225

20. Policy SWDPR 04 of the SWDPR requires substantial weight to be given to any harm to the Green Belt and states that Green Belt proposals will be determined in accordance with the Framework. However, the Framework directs that development which is not inappropriate should not be regarded as harmful to the Green Belt. Accordingly, applying the more recent Framework, I conclude the proposal would not conflict with SWDPR 04 read as a whole.

Principle of replacement dwelling

21. The appeal site is outside any defined development boundary. The main parties accept it is therefore in open countryside, where development will be strictly controlled in accordance with the spatial strategy in Policy SWDPR 03, subject to other policies within the SWDPR. Policy SWDPR 23 states that the replacement of an existing dwelling in the countryside with another single dwelling will be permitted subject to the criteria set out in the policy.
22. The Council raises concern about only one of the criteria in SWDPR 23. Criterion A.iii. requires that the replacement dwelling is not disproportionately larger than the existing dwelling and will not exceed the existing gross internal floorspace by more than 30%.
23. As measured by the appellant's architects, the existing dwelling has a footprint of 112 m² and a gross internal floor area of 143.2 m², while the proposed dwelling would have a gross internal floor area of 345 m². Policy SWDPR 23 expects proposals to be measured against the existing dwelling, with any extension within the previous five years counting towards the 30% increase in gross internal floorspace.
24. If implemented, the detached ancillary outbuilding recently granted a certificate of lawfulness would provide 113 m² of space, including facilities similar to some of those proposed at ground floor level within the replacement dwelling. Notwithstanding the appellant's intention to construct the ancillary outbuilding if permission is not granted for the proposal, it would not count towards the baseline against which the proposal should be measured under Policy SWDPR 23.
25. The reasoned justification for Policy SWDPR 23 seeks to retain existing dwellings where possible. It indicates that the main justification for retaining small dwellings is design related because larger new properties can adversely affect the character of the area. The maximum percentage increase is intended to ensure any increase is proportionate. The Council has not objected to the proposal's design beyond its size relative to the existing dwelling, and I have no reason to disagree with its conclusion that the scheme would be high-quality and would complement the locality.
26. Nevertheless, the proposal would significantly exceed the size limitations in Policy SWDPR 23 and would be disproportionately larger than the dwelling it would replace. Consequently, it would not satisfy the policy requirements for replacement dwellings in the countryside and would not be one of the forms of development supported in the open countryside by the development plan's spatial strategy. Therefore, I conclude that the proposed replacement dwelling would not be acceptable in this countryside location having regard to relevant development plan policies.

27. Accordingly, it would conflict with Policies SWDPR 03 and SWDPR 23 of the SWDPR with regard to their expectation that development in the open countryside will be strictly controlled while allowing the replacement of an existing dwelling subject to the criteria set out.

Protected Species

28. The Conservation of Habitats and Species Regulations 2017 (Habitats Regulations) require me to have regard to the potential effects of the development on protected species. Circular 06/2005 also advises that the presence or absence of protected species, and the extent to which they may be affected, should be established before planning permission is granted and that ecological surveys should be deferred to planning conditions only in exceptional circumstances.
29. A Preliminary Ecological Assessment (PEA) undertaken in August 2024 identified a bat roost within the existing dwelling and recommended further surveys. Those surveys confirmed a day roost and established that a Natural England licence would be required before demolition could take place. Having had regard to Regulations 9(1) and 9(3) of the Habitats Regulations and noting that there is no dispute between the parties on this matter, I have no reason to conclude that the necessary licence would be unlikely to be granted in respect of the dwelling. Accordingly, this aspect of the proposal does not weigh against the development.
30. The PEA was prepared on the basis that the outbuildings would be retained. However, the proposal subsequently evolved to include the demolition of all outbuildings other than the wooden garage and carport. No bat survey information has been provided in respect of the brick-built garage, which the Council considers could provide opportunities for bat roosting, and which the PEA classified as having moderate suitability for roosting bats.
31. The appellant argues that the removal of roof tiles, said to be following storm damage, has left the building exposed to the elements and therefore unsuitable for bats. However, there is no substantive evidence before me regarding when the tiles were lost or the resultant impact on the suitability of the structure for roosting bats. Moreover, the appellant's own ecological evidence advised that further survey work would be required if demolition of the outbuildings is proposed.
32. In the absence of that survey work, I cannot be satisfied that demolition of the brick-built garage would not harm legally protected bat species, nor can I conclude that the proposal would be capable of being licensed if required.
33. With regard to great-crested newts (GCN), the PEA identified a man-made pond (P1) within the appellant's ownership adjacent to the appeal site which was assessed as having good suitability to support GCN. A further pond nearby (P2) was dry at the time of the survey, and ten additional ponds were identified within 500 metres of the site. The PEA advises that GCN surveys would be required if more than 100 m² of suitable terrestrial habitat would be lost, subject to ponds within the area of influence containing water.
34. No GCN surveys have been submitted. The appellant states that the ornamental pond (P1) is fed by a pump which has since been switched off, leaving the pond dry and unsuitable for GCN. However, Natural England's standing advice indicates that surveys may be required where there is a suitable waterbody within 500 metres of the development site, including where ponds hold water only seasonally.

Moreover, the evidence before me does not establish whether the proposal would result in the loss of more than 100 m² of suitable terrestrial habitat, a circumstance which the appellant's own ecological assessment identifies as necessitating further survey work.

35. Whilst neither pond close to the site contained water at the time of my visit, this occurred during a period of exceptionally dry weather and does not demonstrate that they are permanently incapable of supporting GCN. Taking these matters together, I do not have sufficient information before me to exclude the possibility of adverse effects on GCN or their habitat.
36. The submitted evidence demonstrates that the effects of demolishing the existing dwelling on bats could be addressed through mitigation and licensing. However, insufficient survey information has been provided in relation to the brick-built garage and the potential effects of the proposal on GCN. In accordance with Circular 06/2005, these matters should ordinarily be resolved before planning permission is granted and I have seen no exceptional circumstances that would justify a different approach. Consequently, it has not been demonstrated that the proposal would avoid unacceptable effects on protected species or that any necessary mitigation and licensing measures could be secured.
37. The proposal therefore conflicts with Policy SWDPR 29 of the SWDPR insofar as it advises that proposals that would compromise the favourable condition of, amongst other things, species or habitats of principal importance recognised in the Worcestershire Biodiversity Action Plan or listed under section 41 of the Natural Environment and Rural Communities Act 2006, will only be supported if the need for and the public benefits of the proposed development significantly outweigh the loss.
38. Additionally, this would be contrary to Policy N2 of the Framework and the precautionary approach set out in Circular 06/2005.

Biodiversity net gain

39. BNG is a statutory requirement introduced by the Environment Act 2021. Where applicable, it is secured through a statutory planning condition intended to ensure a minimum 10% increase in biodiversity value. Article 7 of the Town and Country Planning (Development Management Procedure) (England) Order 2015 requires an application for planning permission to be accompanied by a statement confirming whether the development would be subject to the statutory BNG condition and if not the reasons for that. If BNG is applicable, further information is required so the statutory BNG condition can be applied and discharged.
40. The proposal includes substantial biodiversity enhancements, but they are not secured by a planning obligation or any other mechanism before me, which reduces the weight that could be placed on them. The appellant instead relies on the proposal being exempt from the BNG regime as a self-build dwelling. Whether that exemption applies depends on the dwelling being properly secured as a self-build dwelling.
41. No legal mechanism, such as a planning obligation under section 106 of the Town and Country Planning Act 1990 (1990 Act), to secure the proposal as self-build development was submitted to the Council prior to its determination of the proposal. However, an executed unilateral undertaking dated 25 August 2026 has

been submitted in support of the appeal. It has been executed by the owners as a deed and is expressed to take effect as a planning obligation under section 106 of the 1990 Act. It secures the dwelling as a self-build dwelling and requires evidence of compliance to be provided following completion and occupation.

42. I am satisfied that this provides sufficient certainty that the dwelling would be delivered and occupied as self-build development for the purposes of the exemption relied upon. Therefore, I conclude that the proposal would satisfy the requirements of the statutory framework for BNG. Consequently, the proposal would not conflict with Policy SWDPR 30 insofar as it requires that all qualifying development proposals must deliver the statutory minimum measurable BNG attributable to the development in line with legislation.

Other Matters

43. The recently granted certificate of lawful proposed use or development for an ancillary building represents a fallback position that could be implemented if the appeal were to fail. The building would provide some of the accommodation facilities sought within the replacement dwelling. Although less substantial than the appeal proposal, it would add to the dispersed built form on the site rather than consolidate the development as proposed. Given the realistic prospect of implementation, I afford the fallback moderate weight in favour of the proposal.
44. The proposal would deliver an energy-efficient dwelling designed to Passivhaus standards. The Council accepts it would reduce operational carbon emissions and represent a benefit of the scheme. The proposal would also achieve a high-quality contemporary design. Although these sustainability and design credentials are commendable, they rely on established principles rather than anything particularly innovative or exceptional. I therefore attach moderate weight to these factors in favour of the proposal.
45. The Council accepts that, in accordance with Annex D, paragraph 9 of the Framework, it is now required to demonstrate a five-year supply of deliverable housing sites, including a 20% buffer. It has confirmed that the South Worcestershire Councils' Five Year Housing Land Supply Report, published in June 2026, demonstrates a 5.48-year housing land supply. There is no substantive evidence before me that leads to a different conclusion. In any event, as the proposal is for a replacement dwelling, it would not add to the overall housing stock, and this matter carries limited weight in my determination.
46. I have had regard to the representations made in support of the proposal, including its design, sustainability and perceived benefits to the character of the area. Those matters have been considered against the evidence and the relevant planning policies and are reflected in my conclusions elsewhere in this decision.

Planning Balance

47. The proposal would not constitute inappropriate development in the Green Belt, and I have found no conflict in relation to the statutory framework for BNG. However, it would conflict with Policy SWDPR 23 because the replacement dwelling would be disproportionately larger than the dwelling it would replace and, consequently, it would conflict with the spatial strategy in Policy SWDPR 03. I have also found that it has not been demonstrated that the proposal would avoid

unacceptable effects on protected species, contrary to Policy SWDPR 29. The proposal therefore conflicts with the development plan when read as a whole.

48. The proposal would replace a dwelling that needs modernisation with a dwelling that meets modern standards and a more coherent development than could arise from the fallback position represented by the lawful ancillary building. It would also deliver environmental benefits through its Passivhaus-led design. In addition, the proposal includes biodiversity enhancements which, if delivered, would provide ecological benefits. There would also be modest temporary economic benefits arising from construction activity.
49. Policy S5 of the Framework sets out how the presumption in favour of sustainable development should be applied to development outside settlements. It also indicates that development in the Green Belt should be determined in accordance with the relevant Green Belt policies. In this case, as I have found that the proposal would not be inappropriate development in the Green Belt, the proposal should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies of the Framework taken as a whole.
50. Policy S5:2 indicates that adverse effects are likely to substantially outweigh benefits where a proposal fails to comply with a national decision-making policy requiring refusal in particular circumstances. Policy N2 states that development should be refused where significant harm to biodiversity cannot be avoided, adequately mitigated or, as a last resort, compensated for. As the evidence does not establish the likely effects on protected species, or whether any necessary mitigation and licensing could be secured, that harm has not been satisfactorily addressed. Alongside the conflict with Policies SWDPR 03 and SWDPR 23, the adverse effects would substantially outweigh the benefits when assessed against the Framework taken as a whole.

Conclusion

51. The proposal would conflict with the development plan read as a whole and there are no material considerations of sufficient weight to indicate that a decision should be taken other than in accordance with it. The appeal is therefore dismissed.

MG Garrard

INSPECTOR